

# Tab 11



## Board of Education Report

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**File #:** Rep-089-23/24, **Version:** 1

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### **Emergency Closure of All District Schools and Programs; Request for Allowance of Attendance Due to an Emergency Condition; Payment of Employees**

**October 17, 2023**

**Office of the Chief Business Officer**

#### **Action Proposed:**

1. Make a finding that the emergency closure of all Los Angeles Unified School District (LA Unified or District) schools, which includes all K-12 schools, affiliated charter schools, Division of Adult and Career Education (DACE) schools, Early Childhood Education programs, and all after school programs on Monday, August 21, 2023, was necessary due to the emergency condition.
2. Authorize staff to take all necessary actions to obtain Allowance of Attendance Due to Emergency Conditions from the California Department of Education (CDE).
3. Ratify payment of salaries for staff who were unable to work remotely during the emergency closure day.

#### **Background:**

##### Nature of Emergency Resulting in School Closure

On Wednesday, August 16, 2023, Los Angeles Unified Emergency Operations staff began tracking Tropical Storm Hilary, and preliminary preparations began when projections showed the storm on a trajectory to impact the Los Angeles area. Coordination with city and county governments and agencies was arranged on Friday, August 18, 2023, and accelerated through the weekend. Weekend coordination also included the National Weather Service. Plans were refined for assessing storm damage, outages, and other impacts to schools. This was the first tropical storm to move across California since 1997, with Tropical Storm Nora.

On Sunday, August 20, 2023, Tropical Storm Hilary was projected to hit the Los Angeles area in the evening hours leaving LA Unified with no opportunity to assess any damages or outages before school would start the next day. Recognizing the unique, unprecedented nature of Tropical Storm Hilary, which garnered city, county, and state declarations of emergency, the District made the decision to close all schools and campuses on Monday, August 21, 2023.

To ensure continuity of learning, Los Angeles Unified took multiple steps to provide lessons and activities for students. Teachers were asked to provide activities and resources on Schoology. In addition, instructional resources were available at LAUSD.org, and KLCS provided educational programming. More than 40,000 assignments were created in Schoology and nearly 154,000 assignments were read. Additionally, the District provided 47,958 meals at 13 Grab & Go Food Distribution sites.

Los Angeles Unified received more than 2,250 storm support service calls and 140 calls related to tree damage

over a 24-hour period as a result of Tropical Storm Hilary. Additionally, power outages, leaks, and technology issues were experienced at a handful of schools and administrative offices. With the closure of schools on August 21, 2023, Facilities, School and Emergency Operations, and LA School Police Department teams were able to assess the conditions of school facilities, address critical issues, and ultimately determine school campuses could safely open to students and staff the next day, on Tuesday, August 22, 2023.

### Impact of School Closure

The three lost instructional days in March 2023 resulted in the District failing to meet the minimum instructional days for all K-12 schools in 2022-2023. To ensure compliance, and avoid paying an estimated penalty of \$112 million, the Board adopted instructional calendars for the 2023-24 and 2024-25 school years with 183 instructional days, which the State requires as a condition for applying for an Instructional Time Penalty Waiver. With the emergency closure on August 21, 2023, the District again fell short of the required instructional days. In order to be compliant with the required 183 instructional days, the District may submit a Request For Allowance Of Attendance Due To Emergency Conditions (Form J-13A) which, if CDE approves, would credit the District for the closure day

### **Expected Outcomes:**

The Board's adoption of the actions proposed.

### **Board Options and Consequences:**

Adoption will enable staff to formally request from CDE allowance of attendance for K-12 schools, by filing the Form J-13A, Request For Allowance Of Attendance Due To Emergency Conditions. CDE's approval of the Form J-13A is needed to receive credit for the instructional time, for both the day and instructional minutes that would have been offered on the emergency closure day. This will enable the District to maintain an offering of 183 instructional days for the 2023-24 school year. Adoption will also enable the District to request enrollment reimbursement for early education centers and California State Pre-school Program (CSPP) at elementary schools.

If not adopted, the District may need to either 1) extend the 2023-24 school year by one more day to maintain an offering of 183 instructional days or 2) pay a penalty estimated at \$112 million.

### **Policy Implications:**

BUL-6144.2, School Day Schedule Requirements and Schedule Change Requests for Regular, Minimum, Shortened, Banked-Time, and Pupil-Free Days, states that the District will offer 183 instructional days in 2023-24. In addition, this bulletin specifies the annual instructional minutes per grade span that will be offered. Moreover, approval helps ensure compliance with, and implementation of, the work-year calendar memorandum of understanding and revised

instructional calendars, as adopted by the Board on June 20, 2023 (Board Report No. 333- 23/24). If the District does not make up the closure day or if CDE does not approve the Form J-13A, then the District may have to revise its policy on instructional days and minutes.

### **Budget Impact:**

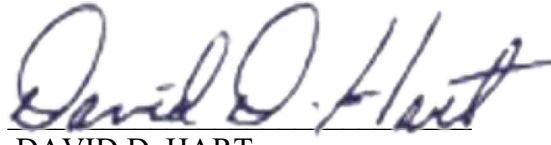
The budget implications are contingent upon the Board's action and CDE's response to the Form J-13A. If the Board adopts the actions proposed and CDE approves the Form J-13A which staff will file, then the District would be able to file the Instructional Time Penalty Waiver and would not be assessed penalties for the school closures resulting from the work stoppage in the 2022-23 school year. The District would also be able to claim

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**RESPECTFULLY SUBMITTED,**

  
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**APPROVED & PRESENTED BY:**

  
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Chief Business Officer  
Office of the Chief Business Officer

**REVIEWED BY:**

  
DEVORA NAVERA REED  
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☒ Approved as to form.

**REVIEWED BY:**

  
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Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.